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File No.: EXP202404357 (AI/00131/2024)

RESOLUTION OF FILE OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On November 6, 2023, a complaint was filed with entry registration number (...) before the Spanish Agency for Data Protection against the AYUNTAMIENTO DE ÁGUILAS with NIF P3000300H (hereinafter, the complained party). The reasons for the complaint are as follows:

On June 26, 2023, the complainant submitted a report to the complained party to communicate certain facts committed by ***PUESTO.1 that could constitute an administrative or criminal offense.

The report was forwarded to the accused, revealing the personal data of the complainant, which is noted in the allegations submitted by the accused.

On August 25, 2023, the complainant communicated the facts to the data protection officer without receiving a response.

The complainant believes that the complained party has improperly disclosed their data to the accused.

Along with the complaint, the report made to the complained party, the allegations made by the accused, and the document sent to the data protection officer are submitted.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to the complained party for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on December 11, 2023, as noted in the acknowledgment of receipt in the file.

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On December 22, 2023, a response was received by this Agency indicating that the AYUNTAMIENTO DE ÁGUILAS had carried out a series of actions aimed at identifying the reason why the complainant believes their right to privacy was violated in the management of their report. The AYUNTAMIENTO DE ÁGUILAS has implemented an internal information channel in compliance with Law 2/2023, of February 20, regulating the protection of persons who report regulatory infringements and combat corruption, being fully operational as of June 14, 2023, prior to the date of submission of the Entry Registration of the report by the complainant, not deeming additional measures necessary to ensure the confidentiality of the information of the interested parties, and indicating the willingness of the AYUNTAMIENTO DE ÁGUILAS to attend to and comply at all times with the principles of privacy regarding the compliance and protection of the fundamental rights and freedoms of individuals and, in particular, their right to personal data protection.

THIRD: On January 9, 2024, in accordance with Article 65 of the LOPDGDD, the complaint submitted was admitted for processing.

LEGAL GROUNDS

I

Competence

In accordance with the functions conferred on each supervisory authority by Article 57.1 a), f) and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and

Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative proceedings.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Conclusion

Therefore, based on the information provided in the previous paragraphs, no evidence has been found to substantiate the existence of an infringement within the jurisdiction of the Spanish Agency for Data Protection.

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All of this without prejudice to any subsequent actions that this Agency may carry out, applying the powers of investigation and corrective measures that it holds.

In its complaint, the claimant refers to Law 2/2023, of February 20, regulating the protection of individuals who report regulatory infringements and the fight against corruption (hereinafter Law 2/2023); and indicates that it filed the complaint in the Registry of the City Council because it had not located a specific channel established for such complaints, despite the fact that the Law requires it. However, the submission of the complaint through a channel other than that established by the CITY COUNCIL OF ÁGUILAS does not undermine the principle of confidentiality guaranteed by Law 2/2023, whose Article 9 provides the following regarding the minimum principles and guarantees concerning the management of information:

"g) Guarantee of confidentiality when the communication is sent through reporting channels other than those established or to staff members not responsible for its processing, who must have been trained in this matter and warned of the classification as a very serious infringement of its breach and, likewise, the establishment of the obligation of the recipient of the communication to forward it immediately to the Responsible for the System."

The breach of this guarantee constitutes an infringement classified in Article 63.1.c) of Law 2/2023:

"c) Breaching the confidentiality and anonymity guarantees provided for in this law, and in particular any action or omission aimed at revealing the identity of the informant when they have opted for anonymity, even if the effective revelation of the same does not occur."

On the other hand, the competence for exercising the sanctioning power is established in Article 61, "Sanctioning Authority," of Law 2/2023:

"1. The exercise of the sanctioning power provided for in this law corresponds to the Independent Authority for the Protection of the Informant, A.A.I., and to the competent bodies of the autonomous communities, without prejudice to the disciplinary powers that the competent bodies may have within each organization.

(...)

3. The competent bodies of the autonomous communities shall be exclusively responsible for infringements committed within the scope of the autonomous and local public sector of the corresponding autonomous community."

Therefore, considering that there is a special law that classifies an infringement that may presumably be applicable to the facts reported by the claimant in their complaint, the AEPD must decline jurisdiction to resolve in favor of the body that is legally assigned the exercise of the sanctioning power provided for in Law 2/2023, of February 20, regulating the protection of individuals who report regulatory infringements and the fight against corruption, in accordance with the aforementioned, whereby, by the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO PROCEED TO FILE the present proceedings.

SECOND: TO NOTIFY this resolution to the CITY COUNCIL OF ÁGUILAS and to the claimant.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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